

		To the extent that Plaintiffs are claiming punitive damages in relation to the fraud cause of action, the motion is moot based on the above ruling on the motion for judgment on the pleadings. The motion is also untimely. Defendant itself cites the rule on this in its motion: “Under Code of Civil Procedure (“CCP”) section 435, ‘Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.’” (Motion, p. 2.) The Second Amended Complaint was filed on December 18, 2025. Defendant filed its answer on 2/10/26. (It was due earlier than this, 30 days after service of the 2AC pursuant to Code Civ. Proc., §435(b)(1).) The motion to strike was not filed until 3/26/26 and is therefore untimely. Defendant shall give notice of both rulings.
5.	2025-1457567 Plane Fetch Charter LLC vs. Firm Foundation Aviation, LLC	The motion to consolidate filed by Defendant/Cross-Complainant Firm Foundation Aviation, LLC and Cross-Complainant Timothy Lomakin is granted. When actions involving common questions of law or fact are pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or make such orders concerning proceedings. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications (i.e., different results because the actions are tried before different factfinders). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial at ¶ 12:340.) The Court finds there are common questions of fact or law such that consolidation would serve the ends of justice as well as judicial economy and efficiency. The motion is granted. The Court consolidates the following actions for all purposes: 1. Plane Fetch Charter LLC et al. v. Firm Foundation Aviation, LLC et al., case no. 30-2025-01457567; and 2. Plane Fetch LLC v. Firm Foundation Aviation, LLC, case no. 30-2025-01457617. The case with the lower number, ending in -7567, is the lead case. (Cal. R. Ct. Rule 3.350(b).)

		Moving parties shall give notice of the ruling.
6.	2025-1501947 Deckers Fine Gifts & Collectibles, Inc. vs. Pearson	Defendant Robert Enderle's ("Defendant Enderle") motion for attorney's fees and costs per CCP § 405.38 is denied. Enderle seeks \$13,283 in attorney fees based on his joinder in the successful motion to expunge the lis pendens. CCP section 405.38 provides: "The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) "The attorney fees provision in the lis pendens statutes originally was enacted to control misuse of the lis pendens procedure." (<i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1018, citation omitted.) "Even after the merits of the expungement motion are determined in favor of the moving party, there may nonetheless be facts and circumstances militating against imposing attorney fees and costs on the lis pendens claimant." (<i>Ibid.</i>) There is no dispute that the Court expunged the lis pendens Plaintiffs recorded on the Property, after granting the motion filed by Defendant Pearson, which Enderle had joined in. (See ROA 75, 144, 151.) The Court finds, however, that Plaintiffs acted with substantial justification in recording the lis pendens and opposing its expungement. The Court further finds that the circumstances discussed below would make the imposition of attorney's fees and costs unjust. While the Court ultimately granted the motion to expunge (which Defendant Enderle had joined in), it did so only after addressing difficult questions of fact and law. This case presented a dispute over whether Plaintiffs had entered into their lease with the owner of the property, or whether the lessor was merely a tenant, such that Plaintiffs were subtenants. The Court found the latter to be true based on the language in the Ground Lease. Nevertheless, the Ground Lease was <i>not</i> mentioned in Plaintiffs' lease agreement, and defendants had asserted an argument that Plaintiffs were on actual or constructive notice because the Ground Lease had been recorded in 1976 (which the Court did not find persuasive). It should also be emphasized that the Lease Agreement did not refer to the Landlord as a "sublessor" and Plaintiffs were told that the lease was "void" on a date over two years before the stated date of termination.